

Calendar Line 7**Case Name:** *Joyce Diaz v. General Motors, LLC***Case No.:** 22CV393755

It is extremely difficult to tell from the parties' lengthy briefs filled with generic and boilerplate arguments exactly what the subject of this motion is. Plaintiff Joyce Diaz seeks to compel the deposition of defendant General Motors, LLC's ("GM's") person most knowledgeable ("PMK") as to deposition topics Nos. 1-11, 15-16, 27-28, 31, and 33-36. (Notice of Motion, p. 1:7-8.) Nowhere in Diaz's opening brief does she actually identify the language of any of these topics. GM's opposition states that GM has already agreed to produce a PMK witness for topics Nos. 1-26 and 31-37. Therefore, it appears that the only remaining dispute is as to topics Nos. 27 and 28. Based on the court's review of the exhibits, it appears that these topics focus on GM's efforts to "preserve relevant and discoverable information in this matter" and its efforts "to search for documents and information responsive to Plaintiff's discovery requests." The court finds that these are inappropriate topics for a PMK deposition of an entity, with little or no probative value for the causes of action in this case. The court therefore DENIES the motion as to the deposition topics.

Diaz also seeks to compel further responses to 21 requests for production of documents (Nos. 1, 2, 3, 7, 8, 13, 20, 24, 25, 27, 33, 41, 85, 91, 108, 110, 111, 125, 126, 127, and 128), but once again, her generic briefs fail to address the specific language of any single one of these requests, much less all of them. Her separate statement contains generic arguments that appear to have been cut and pasted from other separate statements in other cases. The court has reviewed the language of the document requests and observes the following:

- First, it appears that Requests Nos. 1, 2, 3, 7, 8, and 13 focus on documents relating to the "Subject Vehicle"—i.e., Diaz's 2018 GMC Acadia vehicle. GM's responses state that it will produce *at least some* of the requested documents, to the extent that they exist, and it identifies what those documents are. For example, the response to Request No. 7 states:

GM will comply in part and produce a list of technical service bulletins ("TSBs") issued for vehicles of the same year, make, and model as the SUBJECT VEHICLE. After it has produced a list of TSBs GM will – at Plaintiff's request – search for and produce, if located, copies of a reasonable number of TSBs if any, that Plaintiff has identified as specifically regarding the defects alleged in Plaintiff's complaint. GM will also produce copies of the bulletins for every field action, including any recalls, it issued for the SUBJECT VEHICLE as identified in the Global Warranty History Report.

Diaz's separate statement fails to identify the deficiency in this response and similar responses, as it fails to identify what documents it believes are still being withheld by GM and that still need to be produced in response to Requests Nos. 1, 2, 3, 7, 8, and 13. Absent such an identification, there is no basis to compel a further response to these requests.

- Second, Requests Nos. 20, 24, 25, 27, 33, 41, 85, 91, 108, 110, 111, 125, 126, 127, and 128 call for more general, company-wide documents that are not focused on the

“Subject Vehicle” itself. The court finds that these requests are overbroad and that Diaz has failed to articulate any rationale by which this broad scope of discovery could potentially be relevant to the causes of action in this case.

In light of the generic and unhelpful arguments advanced on this motion, including a total failure to show good cause, the court DENIES the motion as to the document requests.

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Calendar Line 8

Case Name: *Sophie Yeh v. The Harker School et al.*

Case No.: 23CV418929

Plaintiff Sophie Yeh moves to compel further responses to requests for production of documents from defendant The Harker School. The court has reviewed the text of the requests and the responses at issue, and it now rules as follows:

- The court agrees with plaintiff that defendant’s responses to Requests Nos. 2 and 3 fail to include a statement of compliance. Although this may seem like a technicality, the wording of defendant’s responses is improper: it asserts a number of boilerplate objections and then it simply states: “Without waiving and subject to said objections The Harker School responds as follows . . . ,” followed by a listing of documents. These responses must be supplemented to include a verified statement of compliance. Contrary to defendant’s position, it is not simply a matter of “reverifying” the responses. The responses themselves are improperly worded and must be amended and then verified.
- Similarly, the court finds that the responses to Requests Nos. 8-13, 18, 27, and 31-32 are also improperly worded. Rather than state that “All tree-related documents within the possession, custody or control of The Harker School are attached hereto as . . . ,” the response should state: “The Harker School will produce all responsive documents within its possession, custody or control, including the documents attached hereto as [Bates numbers].” Otherwise, this is also an ambiguous and unclear statement of compliance/non-compliance.
- Defendant must amend its response to Request No. 7. The basis upon which defendant has opposed this motion is the notion that producing communications with other students injured by the tree, as well as communications with their families, would violate the Family Educational Rights and Privacy Act (FERPA). First, as plaintiff correctly notes, defendant’s written response failed to include any objection based on FERPA.⁵ Second, and more critically, the court is not persuaded that communications between the school and other students’ families would fall within the scope of FERPA, which is designed to protect a child’s educational records. Defendant fails to explain how communications about potential injuries to students from a fallen tree could constitute the *educational records* of those students. Defendant presents no authority to support its position, and the court strains to see how such a broad interpretation of FERPA would serve the legislative purpose behind that statute. To the extent that the objection is not waived, it is overruled.
- Based on counsel’s representation that all documents that have been withheld on the basis of privilege (other than those responsive to Request No. 7, discussed above) are included in the privilege log that has already been served, the court finds that no

⁵ Indeed, in the meet-and-confer correspondence between the parties, there is no discussion of FERPA, either. Instead, in an April 4, 2024 letter, it appears that defendant tried to invoke “HIPPA[sic],” which is also inapplicable.